

MASS PUBLIC VIOLENCE (ACCOUNTABILITY & PROTECTION OF LIFE)

A FEDERAL-SAFE CONSTITUTIONAL ENFORCEMENT FRAMEWORK

Legislative Policy Concept – 2025

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STATEMENT OF OBJECTS & REASONS

Despite the constitutional guarantee of the Right to Life under Article 21, India has witnessed repeated incidents of mass public violence resulting in large-scale loss of life and grievous injury. Existing criminal law mechanisms under the Indian Penal Code and Code of Criminal Procedure primarily address individual criminal liability after the occurrence of violence. They do not create an automatic constitutional accountability structure for the failure of protection itself.

Further, judicial experience, including long-running investigations and closures in mass violence cases, has demonstrated that “institutional failure” is often acknowledged without personal command liability being legally enforced at the operational or supervisory level. The absence of statutory presumptions, numeric triggers, and independent real-time investigation transfer mechanisms has resulted in prolonged litigation, evidentiary erosion, and structural diffusion of responsibility.

This Legislative Concept seeks to:

- Convert the constitutional duty to protect life into enforceable real-time statutory action
- Remove the “institutional failure” shield as a non-criminal escape route
- Embed command responsibility into domestic law
- Preserve State autonomy through federal safeguards
- Enable strictly time-bound Union intervention only under non-bypassable constitutional triggers

This framework is forward-looking and does not seek to reopen or re-litigate concluded judicial determinations, but to ensure that the structural gaps revealed by past cases are permanently closed for the future.

EXECUTIVE SUMMARY

India's constitutional system guarantees life, equality, and remedy. However, no statute automatically transforms mass public violence into a constitutional emergency requiring enforced command accountability and independent neutral investigation.

Judicial history, including the Zakia Jafri proceedings arising from the 2002 Gujarat riots, has highlighted a recurring structural limitation:

- Acknowledgment of administrative or institutional failure without automatic criminal command liability
- Dependence on State-controlled investigative architecture in the earliest and most critical phase
- Absence of statutory numeric triggers for constitutional escalation
- Reactive rather than real-time protection of evidentiary integrity

This Policy introduces a federal-safe constitutional enforcement architecture built on:

- A numeric and temporal definition of "Mass Public Violence"
- A statutory presumption of Wilful Dereliction of Duty once protection collapses
- A triple-lock trigger for exceptional Union intervention
- Automatic constitution of a time-bound Special Union Investigation Authority
- Supreme Court supervision strictly as constitutional auditor
- Mandatory digital evidence preservation with criminal consequences
- Command responsibility doctrine codified into domestic law
- Anti-misuse and anti-politicisation safeguards

The policy converts constitutional duty into operational law without destroying the federal structure.

- **CHAPTER I – CONSTITUTIONAL FOUNDATION**

- Article 21 guarantees the Right to Life and Personal Liberty.
- Article 14 mandates equality before law.
- Article 32 guarantees enforcement of fundamental rights.
- Article 355 imposes a duty upon the Union to protect States against internal disturbance and ensure constitutional governance.

Public order remains a State subject under List II of the Seventh Schedule.

- The present constitutional arrangement creates a dual reality:
- States control policing,
- But the Union carries ultimate responsibility for constitutional protection.
- This Policy harmonises both without altering constitutional distribution of power.

CHAPTER II – DEFINITIONS

2.1 Mass Public Violence

Any incident or continuous sequence of violence resulting in:

- Five (5) or more deaths, or
- Ten (10) or more grievous injuries

Within a continuous 48-hour period arising from riot, mob violence, political violence, communal violence, or large-scale breakdown of law and order.

2.2 Wilful Dereliction of Duty

Failure of protection where delay, withdrawal, suppression, or discriminatory non-deployment of force occurs despite:

- Prior intelligence,
- Availability of force, or
- Receipt of real-time emergency communication.

2.3 Command Officer

Includes SHO, Circle Officer, SP/Commissioner, District Magistrate, Control-Room Supervisors, and any officer exercising operational control over force deployment.

2.4 Special Union Investigation Authority (SUIA)

A temporary statutory investigation body constituted by the Union under this framework, functioning under continuous Supreme Court supervision and dissolving automatically after charge-sheet and judicial certification.

CHAPTER III – STRUCTURAL DEFECT REVEALED BY ZAKIA JAFRI CASE (CASE-MAP FOUNDATION)

- The proceedings initiated by Zakia Jafri following the 2002 Gujarat riots constitute a defining illustration of India’s present constitutional accountability limitation.

The investigation and judicial process spanning nearly two decades demonstrated that:

- Large-scale fatalities can occur without any automatic statutory presumption of supervisory criminal failure.
- Investigative initiation remains State-controlled at the most evidence-critical stage.
- “Institutional failure” remains an administrative acknowledgement without prosecutable legal consequence.
- Command-level liability remains discretionary and evidentiary-burden heavy on victims.
- Evidence preservation lacks real-time constitutional compulsion.
- The Supreme Court’s final closure in the matter rested on the legal sufficiency of material presented under the existing statutory structure. The judgment does not negate moral or administrative lapses, but it exposes the absence of a statutory architecture that transforms systemic protection collapse into automatic constitutional enforcement.

This Policy is designed precisely to close this structural vacuum for all future incidents of mass public violence

CHAPTER IV – REMOVAL OF THE “INSTITUTIONAL FAILURE” SHIELD

(Statutory Conversion of Systemic Collapse into Prosecutable Dereliction)

4.1 Statutory Presumption of Wilful Dereliction

Where an incident qualifies as Mass Public Violence under Chapter II, and where:

- Protection is demonstrably delayed, withdrawn, or selectively denied; or
- Force deployment is suppressed or under-utilised despite available capacity; or
- Prior intelligence or preventive warning is shown to have existed,

- a statutory presumption of Wilful Dereliction of Duty shall automatically arise against all relevant Command Officers.

This presumption shall operate independently of any departmental or political explanation.

4.2 Burden of Proof Shift

Once the presumption under Section 4.1 is triggered, the burden shall shift to the concerned State and Officers to prove:

- That no actionable intelligence existed despite reasonable diligence;
- That no deployable force was available despite prudent preparedness; and
- That real-time response was non-discriminatory and bona fide.
- Failure to fully discharge this burden shall convert presumption into prosecutable criminal liability.

4.3 Abolition of the “Institutional Failure” Defence

The defence of “institutional failure”, “administrative lapse”, or “systemic breakdown” shall not be a legally sufficient defence where:

- Mass casualty thresholds are crossed, and
- Protective response deficiency is established.

Such terminology shall not dilute or absorb criminal command responsibility.

4.4 Embedded Zakia Jafri Structural Reference (Policy-Internal)

In the Zakia Jafri proceedings, prolonged judicial scrutiny culminated in acknowledgment of administrative and institutional lapses without automatic criminal command presumption at the supervisory level. This exposed the absence of a statutory mechanism converting systemic protection collapse into automatic prosecutable dereliction.

This Chapter permanently removes that escape route.

Future cases shall not be capable of closure on the ground of “institutional failure” without criminal adjudication of command responsibility.

CHAPTER V – FEDERAL-SAFE UNION ACTIVATION MECHANISM

(Constitutional Conversion of Mass Violence into Statutory Escalation)

5.1 Triple-Lock Trigger for Union Intervention

Union-level investigative activation shall occur only when all three of the following conditions coexist:

(1) Statutory Fatality / Injury Threshold

- The incident satisfies the definition of Mass Public Violence under Chapter II.

(2) Independent Proof of Protection Failure

Protection failure shall be established through one or more of the following:

- Notice or findings of the National or State Human Rights Commission;
- Order of a Judicial Magistrate under Section 156(3) CrPC;
- Certified judicial affidavits supported by forensic-verifiable digital records;
- High Court suo motu cognizance;
- Two independent constitutional authorities from different institutional domains.
- State Executive certification alone shall not constitute valid proof.

Prima Facie Constitutional Threat Determination

- A prima facie determination that Article 21 protection of life has been systemically compromised, not merely individually violated.
- Only when all three triggers operate together shall Union intervention activate.

5.2 Embedded Zakia Jafri Trigger Simulation

Policy Trigger 2002 Gujarat Events Outcome Under This Policy

≥ Five fatalities in 48 hrs Crossed repeatedly Automatic MPV classification

Independent protection-failure proof NHRC actions & judicial scrutiny Trigger satisfied

Article 21 systemic threat Judicially examined Constitutional escalation

Result:

Under this framework, Union investigative activation would have occurred within 24 hours, instead of remaining primarily under State-controlled initiation for extended periods.

5.3 Federal-Safety Declaration

Nothing in this Chapter:

- Converts public order into a routine Union subject
- Permits permanent Union policing authority in a State
- Allows political executive override of State machinery

The Union's role remains exceptional, time-bound, and judicially supervised.

CHAPTER VI – SPECIAL UNION INVESTIGATION AUTHORITY (SUIA)

(Independent, Temporary, Judicially-Controlled Investigation Mechanism)

6.1 Mandatory Constitution

Upon satisfaction of the Triple-Lock Trigger under Chapter V:

- The Union Government shall constitute SUIA within 24 hours by statutory notification.
- Constitution of SUIA is mandatory, not discretionary.

6.2 Legal Character of SUIA

SUIA shall be:

- Temporary
- Case-specific
- Independent of State executive control for the duration of investigation
- Under continuous supervision of a designated Supreme Court Bench
- SUIA shall possess all powers of investigation under the CrPC.

6.3 Jurisdiction of SUIA

SUIA shall investigate:

- The core mass violence offences
- The conduct of Command Officers under Chapter IV
- Intelligence receipt, suppression or misuse
- Control-room log actions
- Evidence handling and maintenance

6.4 Automatic Dissolution

SUIA shall automatically dissolve upon:

- Filing of final charge-sheet before the competent trial court; and
- Judicial certification by the supervising Supreme Court Bench that:
- All material evidence is placed on record;
- Command liability investigation is complete.

After dissolution, trial shall proceed only before ordinary criminal courts.

6.5 Zakia Jafri Structural Closure Reference

In the Zakia Jafri proceedings, investigative control remained tethered to State and later court-constituted SIT architecture after extended litigation. This delayed independent constitutional escalation.

Under this Policy:

- Independent investigative authority would have arisen by statute within 24 hours, not through years of litigation.
- Evidence evaporation and institutional buffering would be structurally blocked

CHAPTER VII – DATA & EVIDENCE INTEGRITY

(Constitutional Protection of Truth at the Earliest Stage)

7.1 Mandatory Ten-Year Preservation

In every incident classified as Mass Public Violence, the following shall be mandatorily preserved for not less than ten (10) years:

- Emergency call logs (100/112 and any local helplines)
- CCTV and public infrastructure video feeds
- Wireless police communication records
- Control-room logs (digital and manual)
- Deployment registers, movement logs, and duty rosters
- Body-worn camera and field digital device records (where available)

7.2 Encrypted Judicial Backup

Within six (6) hours of statutory classification as Mass Public Violence, an encrypted judicial mirror-backup of all critical data shall be created and secured under the custody of the supervising Supreme Court Bench.

7.3 Criminalisation of Evidence Tampering

Any deletion, tampering, suppression, delay in preservation, or manipulation of the above data shall constitute a non-bailable criminal offence, punishable with:

- Rigorous imprisonment
- Fine
- Permanent disqualification from public office upon conviction

7.4 Zakia Jafri Structural Closure

In the 2002 investigation sequence, the absence of real-time statutory digital preservation obligations resulted in fragmented, delayed, and contested evidentiary trails.

This Chapter eliminates that evidentiary vulnerability permanently.

CHAPTER VIII – PERSONAL COMMAND RESPONSIBILITY

(Codification of Supervisory Criminal Liability)

8.1 Automatic Prima Facie Command Liability

Upon activation of the presumption under Chapter IV, prima facie criminal liability shall attach automatically to the following:

- Station House Officers
- Circle Officers / DSPs
- District Superintendents / Commissioners
- District Magistrates / Executive Magistrates
- Control-Room and Emergency Response Supervisors

8.2 Nature of Liability

Command officers may be prosecuted for:

- Criminal negligence
- Abetment through omission
- Dereliction causing death or grievous harm
- Violation of constitutional duty under Article 21

Punishments may include:

- Imprisonment
- Dismissal from service
- Permanent disqualification from holding public office

8.3 Due Process Safeguard

Nothing in this Chapter shall dispense with:

- Independent investigation,
- Framing of charges under law, and
- Proof beyond reasonable doubt for conviction.

8.4 Zakia Jafri Command Responsibility Gap

In the Zakia Jafri proceedings, command-level liability remained discretionary and evidentiary-burden heavy on victims, with no automatic statutory presumption.

This Chapter converts systemic protection failure into prosecutable command crime by default.

CHAPTER IX – VICTIM COMPENSATION & FISCAL ACCOUNTABILITY

9.1 Primary State Liability

- Primary compensation liability shall vest with the concerned State Government.

9.2 Union Supplementary Support

- A Union Fundamental Rights Emergency Support Fund may provide supplementary compensation in exceptionally large-scale incidents.

9.3 Department-Specific Fiscal Penalty

Where Wilful Dereliction is finally established:

- Compensation and investigation costs may be recovered from the negligent department's budget.
- No unrelated central grants shall be withheld.
- Fiscal penalties shall be targeted, not politically weaponised.

CHAPTER X – ANTI-MISUSE & POLITICAL SAFETY MECHANISMS

10.1 False Trigger Criminal Liability

Fabrication or manipulation of evidence to artificially activate this Act shall constitute a serious criminal offence punishable with:

- Imprisonment
- Fine
- Disqualification from public office

10.2 Time-Bound Union Presence

Union authority through SUIA shall be strictly limited to:

- The investigation stage
- Automatically dissolved after charge-sheet and judicial certification

10.3 Parliamentary Transparency

Every activation shall be placed before Parliament within 90 days, containing:

- Incident summary
- Basis of activation
- Investigation status
- Dissolution status of SUIA

CHAPTER XI – JUDICIAL OVERSIGHT

11.1 Supervisory Role

The designated Supreme Court Bench shall:

- Review progress every 30 days
- Safeguard victims' participation
- Prevent executive overreach
- Preserve State autonomy within constitutional limits

11.2 Nature of Court's Role

The Court shall function strictly as:

- Constitutional auditor
- Rights-protector
- Supervisory authority

It shall not assume executive or investigative functions.

CHAPTER XII – ZAKIA JAFRI CASE-MAP IMPACT MATRIX (STRUCTURAL SIMULATION)

Structural Stage	Existing Law (2002–2022)	Under This Act
Early protection	Discretionary State response	Statutory mandatory response
Investigation	State & later SIT	SUIA within 24 hours
Evidence	Ad hoc preservation	Encrypted judicial preservation
Command liability	Discretionary	Automatic prima facie liability
Institutional failure	Non-criminal descriptor	Abolished as defence
Victim burden	Decades of litigation	Immediate rights-triggered escalation

Conclusion:

This Act would have structurally altered investigative control, evidentiary security, and command liability from the first 24 hours.

CHAPTER XIII – FEDERAL & FINANCIAL MEMORANDUM

- No alteration to Seventh Schedule distribution of powers.
- No permanent Union police authority created.
- Financial burden primarily remains with States.
- Union expenditure limited to rare SUIA activations.
- No recurring fiscal liability on Consolidated Fund of India except exceptional investigations.

CHAPTER XIV – CONSTITUTIONAL BALANCE DECLARATION

This Act:

- Preserves State primacy in public order.
- Converts Article 21 into real-time enforcement.
- Operationalises Article 355 without political misuse.
- Institutionalises command accountability.
- Abolishes the “institutional failure” shield.
- Converts mass violence into automatic constitutional emergency, not routine administrative accident.

OFFICIAL LEGISLATIVE OBJECT

To ensure that no mass loss of life arising from public violence in India is ever absorbed as a mere procedural lapse, and that the constitutional protection of life under Article 21 operates through automatic, enforceable, and federally-safe accountability mechanisms binding both State and Union authorities.